

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
FEIYAAD HANIFF,

Plaintiff,

-against-

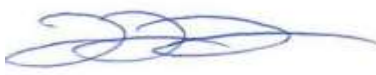
THE CITY OF NEW YORK, NYPD POLICE
OFFICER CAPTAIN MEYERS, NYPD POLICE
OFFICER "JOHN DOE", Individually and in their
Official Capacity (the name John Doe being fictitious,
as the true name is presently unknown)Defendants.
-----X

Index No.:

Plaintiff designates
QUEENS County
as the place of trial**SUMMONS**The basis of venue is the
location where the
incident arose

TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 3, 2024**JON L. NORINSBERG, ESQ., PLLC**By: _____
Jon L. Norinsberg, Esq.
Attorneys for Plaintiffs
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New York, New York 10022
Tel.: (212) 791-5396
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jon@norinsberglaw.comDefendants' Address:
New York City Law Department
Office of Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
FEIYAAD HANIFF,

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, CAPTAIN "JOHN"
MEYERS, NYPD POLICE OFFICER "JOHN
DOES," Individually and in their Official Capacity
(the name John Doe being fictitious, as the true name
is presently unknown)**VERIFIED
COMPLAINT**Defendants.
-----X

Plaintiff, FEIYAAD HANIFF ("Plaintiff"), by his attorneys, JON L. NORINSBERG, ESQ. PLLC, complaining of the defendants, upon information and belief, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. §§ 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 of the New York Administrative Code, and the common law and laws of the State of New York.

2. On October 13, 2023, at approximately 4:05 p.m., Plaintiff Feiyaad Haniff was near 126-04 140th Street, Jamaica, NY, County of Queens, State of New York.

3. At the aforesaid time and place, Plaintiff Feiyaad Haniff ("Plaintiff" or "Mr. Haniff") observed Captain "John" Meyers ("Captain Meyers") abusively yelling at a female motorist for no reason. Thereafter, plaintiff politely asked Captain Meyers to stop yelling at this woman, as she was doing nothing wrong and appeared to be visibly frightened by Captain Meyers'

conduct.

4. Thereafter, Captain Meyers and Police Officer “John Doe” of 113th precinct in Queens, NY, repeatedly and violently punched plaintiff in the back of his head and choked plaintiff. Plaintiff pleaded with the officers to stop assaulting him, but they refused to do so.

5. Thereafter, Defendants forcibly grabbed Plaintiff, sharply twisted his arms behind his back and handcuffed him, and then threw him into the back of the police car with great force. Thereafter, the plaintiff told the officers that he was hurt and asked them to call for medical help, but the officers refused to do so.

6. As a result of this violent assault, Plaintiff was caused to suffer multiple serious physical injuries, including but not limited to injuries to his head, neck, right knee, right wrist, left knee and left wrist.

7. Apart from being violently assaulted by defendant police officers, Plaintiff Feiyaad Haniff was also subjected to an unlawful stop, detention, and arrest by the defendant police officers. Thereafter, Plaintiff was subjected to over 12 hours of unlawful confinement at the NYPD 113th Precinct and Queens County Central Booking.

8. On or about October 14, 2023, all charges against Plaintiff were dismissed and sealed in their entirety.

9. As a result of Defendants’ unlawful actions, Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when, the individual defendants unlawfully assaulted him, stopped and detained him and passed along false information to prosecuting attorneys, resulting in a baseless malicious prosecution of Plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State and City

of New York.

THE PARTIES

9. Plaintiff Feiyaad Haniff is a resident of Queens County, State of New York.
10. NYPD Police Officer Captain “John” Meyers, Shield No. unknown, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Captain Meyers is being sued in his individual and official capacity.
12. Upon information and belief, Captain Meyers was at all times relevant herein assigned to the NYPD 113th Precinct.
13. NYPD Police Officer John Doe is and was at all times relevant herein an officer, employee, and agents of the New York City Police Department.
14. Police Officer John Doe is being sued in his individual and official capacities.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.
16. At all times relevant herein, the individual defendants were acting for and on behalf of the New York City Police Department, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.
18. Plaintiff timely filed a Notice of Claim against the City of New York in compliance

with the Municipal Law Section 50 and in accordance with New York State law.

19. In accordance with New York State law and General Municipal Law Section 50, Plaintiff is scheduled to testify at a hearing held pursuant to General Municipal Law Section 50(h) on April 11, 2024.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the Defendant, and/or Defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On October 13, 2023, at approximately 4:05 p.m., Plaintiff was lawfully operating his vehicle near 126-04 140th Street, Jamaica, NY, Queens County when he observed Captain Meyers abusively yelling at a female motorist for no reason.

24. Plaintiff then parked his vehicle and got out of his car to politely ask Captain Meyers to stop yelling at this woman, as she was doing nothing wrong and appeared to be visibly frightened by Captain Meyer's conduct.

25. In response, Captain Meyers became enraged at plaintiff and started screaming at him, hurling expletives and racial epithets at him.

26. Thereafter, Captain Meyers and Police Officer "John Doe" of 113th precinct in Queens, NY, repeatedly and violently punched plaintiff in the back of his head and choked Plaintiff.

27. Plaintiff pleaded with the defendant officers to stop assaulting him, but they refused to do so.

28. Thereafter, Defendants forcibly grabbed Plaintiff, sharply twisted his arms behind his back and handcuffed him, and then threw him into the back of the police car with great force.

29. The plaintiff told the defendant officers that he was hurt and asked them to call for medical help, but the officers refused to do so.

30. Defendant officers then searched Plaintiff, placed him in unreasonably tight metal handcuffs causing pain, forcibly lifted him, which caused excruciating pain, and placed him in the back of an NYPD vehicle while he was still disoriented.

31. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

32. At no point did defendant police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

33. Plaintiff did not resist arrest in any manner.

34. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

35. Plaintiff was thereafter transported to the 113th Precinct against his will.

36. At the precinct, Plaintiff was again unlawfully searched, fingerprinted, photographed, and placed in a holding cell.

37. Still in excruciating pain from being assaulted by the defendant police offices, Plaintiff requested medical attention, which Defendant Police Officers deliberately and willfully

delayed, until they finally summoned an ambulance to transport Plaintiff to Long Island Jewish Valley Stream Hospital for treatment.

38. After being examined and treated at the hospital, Plaintiff was transported back to the precinct.

39. Nevertheless, Plaintiff was transported to Central Booking, where he was again processed and detained in a holding cell.

40. While Plaintiff was in custody, defendant police officers provided prosecutors in the Queens County District Attorney's Office with knowingly false, misleading, and dishonest information, claiming that they had observed Plaintiff committing multiple crimes in their presence.

41. As a result of defendant officers' lies to prosecutors, Plaintiff was charged with multiple offenses, including but not limited to, Obstruction of Government Administration, and other related charges.

42. The following day, the Plaintiff was arraigned in Criminal Court, charged with multiple crimes he did not commit, and released on his own recognizance.

43. On or about October 14, 2023, all the false charges made against Plaintiff were dismissed in their entirety.

10. As a result of Defendants' unlawful actions, Plaintiff sustained multiple serious injuries, including but not limited to, injuries to his head, neck, right knee, right wrist, left knee and left wrist.

44. As a result of Defendants' unlawful actions, Plaintiff, who is only thirty (30) years-old, has marked limitations in his mobility.

45. Plaintiff requires surgery for his right knee. Plaintiff continues to receive physical

therapy three (3) times per week.

46. All of the police officers involved with this incident are responsible for the injuries suffered by Plaintiff. While some officers directly inflicted injuries on Plaintiff, others stood by and did nothing, watching their colleagues flagrantly violate Plaintiff's rights under the Constitution of the United States, New York State Law and New York City law.

47. The Defendant officers who stood idly by and did nothing to prevent their fellow officers from unjustifiably assaulting Plaintiff, arresting him, confining him, and using excessive force against him, are equally responsible for the severe and permanent injuries suffered by Plaintiff.

FIRST CAUSE OF ACTION
(Assault)

48. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

49. Defendants without just cause, willfully and maliciously threatened to use physical force against Mr. Haniff, causing him to fear imminent bodily harm and ultimately causing him to suffer multiple physical injuries.

50. Defendants committed the foregoing acts intentionally, willfully, and with a callous disregard for Plaintiff's rights, and are therefore liable for punitive damages.

SECOND CAUSE OF ACTION
(Battery)

51. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

52. Defendants without just cause or provocation, willfully and maliciously used physical force against Mr. Haniff, causing him to suffer harmful, offensive bodily contact, and causing him to suffer permanent injuries.

53. There was no excuse or justification for defendants' unlawful use of excessive force.

54. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard of Plaintiff's civil rights under federal, state and city law.

55. As a direct and proximate result of Defendants' deprivations of Mr. Haniff's rights, Mr. Haniff suffered damages in an amount to be determined at trial.

THIRD CAUSE OF ACTION
(False Arrest/False Imprisonment)

51. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
(Unlawful Seizure and Deprivation of Liberty)

57. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION
(Unlawful Stop, Question, and Search)

60. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

62. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the

scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SIXTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

81. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
(Negligent Hiring/Training/Supervision/Retention)

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs of this Complaint with the same force and effect as though fully set forth and length herein. Defendants owed a duty to the public at large, including but not limited to Plaintiffs, to exercise reasonable care in the selection, hiring and retention of all its employees, and in particular, Police officers.

87. Defendant City of New York failed to use reasonable care when it hired Defendant Police Officers.

88. Defendant City of New York failed to make reasonable inquiries into the background of Defendant Police Officers

89. Had defendant City of New York used reasonable care in inquiring into the background and training of defendant Police Officers, they would have learned that they were patently unqualified to serve as police officers.

90. Defendant City of New York was further negligent in failing to properly train its Police Officers, including Defendant Police Officers, regarding their duties and responsibilities for caring for arrestees in their custody.

91. Specifically, Defendant City of New York was negligent in failing to properly train its Police Officers, including Defendant Police Officers, regarding the mandatory rules, regulations, guidelines and procedures regarding the use of force that *must* be followed by the NYPD when effectuating a seizure and arrest of a citizen.

92. Had defendant City of New York properly trained defendant Police Officers, Plaintiff would not have been assaulted by the defendant police officers, and would not have suffered any of the injuries that he suffered as a result therefrom.

93. Had defendant City of New York used reasonable care in supervising Defendant Police Officers, they would have known that they were patently unqualified to serve in their positions and they would have reassigned defendant Police Officers to a position that did not pose a substantial risk of harm to members of the public at large.

94. As a result of defendant City of New York's negligence in hiring Defendant Police Officers, Plaintiff was violently assaulted by NYPD officers and suffered multiple severe bodily injuries as a result.

95. In choosing to hire, and then retain, Defendant Police Officers, and in failing to properly train and supervise them, defendant City of New York breached its duty to the public at large, and to Plaintiff, in particular, to use reasonable care in the selection, retention, training and supervision of its employees.

96. The City of New York and its employees, servants and/or agents, acting within the scope of their employment, did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

97. Defendant City of New York knew that the subject officers were unfit for the performance of police duties, based on their prior unlawful actions as police officers, as documented in their disciplinary histories and/or their Civilian Complaint Review Board histories.

98. Notwithstanding its knowledge that Defendant officers were patently unfit to carry out their duties and responsibilities as police officers, Defendant City of New York failed to impose any meaningful discipline on Defendant Officers, failed to hold them accountable in any manner for their prior acts of misconduct, failed to properly retrain the subject officers and failed to properly supervise them.

99. As a result of the aforementioned negligent acts and omissions of Defendant City of New York, Plaintiff sustained injuries, including but not limited to, severe physical and emotional injuries, as set forth above.

EIGHTH CAUSE OF ACTION
(Failure to Intervene)

100. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

101. Those Defendants who did not physically touch Plaintiff, but who were present when other officers violated Plaintiff's Constitutional Rights, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Those Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, Plaintiff suffered severe and permanent injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, which is therefore responsible for their conduct.

106. The City, as the employer of the officer Defendants, was and is responsible for their wrongdoing under the doctrine of respondeat superior.

107. As a result of the aforementioned conduct of Defendants, Plaintiff sustained

injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION
(Negligence)

108. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

109. Defendants owed a duty of care to Plaintiff.

110. To the extent Defendants claim that the injuries to Plaintiff by the Defendant police officers were unintentionally caused and that the force used by the Defendants against him was unintentional, then the defendants breached that duty of care by, among other things, by assaulting Plaintiff.

111. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

112. All of the foregoing occurred without any fault or provocation by Plaintiff.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, which is therefore responsible for their conduct.

114. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

115. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION
(Excessive Force Under 42 U.S.C. § 1983)

116. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

117. The level of force employed by Defendants was objectively unreasonable and in violation of Plaintiff's constitutional rights.

118. As a result of the foregoing, Plaintiff sustained, *inter alia*, severe pain and suffering, loss of life, bodily injuries, emotional distress, and deprivation of his constitutional rights.

ELEVENTH CAUSE OF ACTION
(Failure to Intervene Under 42 U.S.C. §1983)

119. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

120. Defendant police officers had an affirmative duty to intervene to protect the constitutional rights of Plaintiff from being violated by other police officers in their presence.

121. Defendant police officers violated Plaintiff constitutional rights in the presence of their police colleagues.

122. Defendant police officers had reason to know Plaintiff's constitutional rights were being violated.

123. Defendant police officers had a realistic opportunity to intervene to prevent the harm from occurring to Plaintiff but failed to do so.

124. Notwithstanding this opportunity, Defendant police officers failed to intervene to prevent the violations of Plaintiff's constitutional rights.

125. As a result of the foregoing, Plaintiff sustained, *inter alia*, severe pain and suffering, bodily injuries, loss of life, emotional distress, and deprivation of his constitutional rights.

TWELFTH CAUSE OF ACTION
FALSE ARREST UNDER 42 U.S.C. § 1983

126. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

127. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

128. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

129. Defendants unlawfully seized and detained Plaintiff, depriving him of his liberty without any lawful justification for doing so.

130. The acts complained of were carried out by the aforementioned individual defendants in his capacity as a police officer, with all the actual and/or apparent authority attendant thereto.

131. The acts complained of were carried out by the aforementioned individual defendant in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

132. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

THIRTEENTH CAUSE OF ACTION
(Denial of Right to Fair Trial/Due Process Based on Fabricated Evidence)

133. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District

Attorney's Office.

135. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

136. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

137. In creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

138. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

139. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, which is therefore responsible for their conduct.

140. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

141. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION
(Malicious Prosecution under State and Federal law)

142. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

143. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution and the laws of the State of New York.

144. Defendants commenced and continued criminal proceedings against Plaintiff.

145. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

146. The prosecution and criminal proceedings terminated in Plaintiff's favor on when all criminal charges were dismissed against him on October 14, 2023.

FIFTEENTH CAUSE OF ACTION
(Municipal Liability Under 42 U.S.C. § 1983)

147. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above numbered paragraphs with the same force and effect as if fully set forth herein.

148. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

149. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, the following:

- i. Training its police officers to aggressively detain alleged suspects;
- ii. Failing to discipline police officers who use excessive force;
- iii. Creating a policy where the use of excessive force creates a serious risk to the general population of the City of New York, and recklessly disregarding that risk of serious injury; and
- iv. Displaying a deliberate indifference to the health, safety and welfare of civilians who are the subjects of excessive force by the police, and who sustain injuries and/or death as a result.

150. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as has been recently publicized in the news media.

151. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

152. Additionally, the NYPD's deliberate indifference to proper training, supervising and/or disciplining of policy making officials, such as defendants CAPTAIN MEYERS, POLICE OFFICERS JOHN DOES #1-10, constituted explicit and/or tacit approval of their illegal and unconstitutional conduct.

153. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiff was violently assaulted by police officers, and suffered grievous injuries as a result.

154. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

155. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

156. The acts complained were a direct and proximate result of the usages, practices, procedures and rules of the City of New York and the New York City Police Department, which constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

157. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of

the constitutional violations suffered by plaintiff as alleged herein.

SIXTEENTH CAUSE OF ACTION

(Individual Defendant Officer's Violation of Plaintiff's AC § 8-802 Rights)

158. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

159. The acts of the Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

160. The acts of the Defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

161. The Defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining Plaintiff and further causing his deprivation of liberty until he was released from police custody.

162. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

(Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights)

163. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

164. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

165. Defendant officers had a duty to protect Plaintiff from violations of his rights under

2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

166. Those Defendants who did not physically touch Plaintiff, but who were present when other officers violated Plaintiff’s AC §§ 8-802 right against unreasonable search and seizure and excessive force, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

167. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

168. By reason of the acts and omissions by defendants described above, Plaintiff has suffered physical, mental and emotional injuries and was otherwise damaged and injured.

EIGHTEENTH CAUSE OF ACTION
(City-Employer’s Liability for Defendant Officer’s Violation of
Plaintiff’s AC § 8-802 Rights)

169. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

170. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

171. The City of New York, as the employer of the covered individual Defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant officers.

172. The acts of the Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

173. The acts of Defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

174. The Defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining and further causing his detention for approximately 16 hours in total.

175. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

NINETEENTH CAUSE OF ACTION
(City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights)

176. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

177. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

178. The City of New York, as the employer of the covered individual Defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.

179. The acts of the Defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

180. The Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure

against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

181. The Defendants who did not physically touch Plaintiff but who were present when other officers violated Plaintiff's AC §§ 8 – 802 rights against unreasonable searches and seizures and excessive force, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

182. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

183. By reason of the acts and omissions of Defendants described above, Plaintiff has suffered physical, mental and emotional injuries and was otherwise damaged and injured.

TWENTIETH CAUSE OF ACTION
(Violation of Article I, § 12 of the New York State Constitution)

184. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

185. The aforesaid unlawful conduct of Defendants breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from excessive force;
- iv. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent;
- v. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and

vi. freedom from deprivation of liberty without due process of law.

186. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, mental, economic, and emotional injuries, as well as a deprivation of liberty.

187. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, mental, economic, and emotional injuries, as well as a deprivation of liberty.

188. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual Defendants and any damages they caused under the doctrine of respondeat superior.

JURY DEMAND

189. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff FEIYAAD HANIFF, demands judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, including punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the legal costs of prosecuting suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 et seq., and any further relief that the Court deems just and proper.

Dated: New York, New York
April 3, 2024

Yours, etc.

JON L. NORINSBERG, ESQ., PLLC



Jon L. Norinsberg, Esq.

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ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF NEW YORK)

JON L. NORINSBERG, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, hereby affirms the truth of the following under penalty of perjury:

I am a partner in the law firm of **JON L. NORINSBERG, ESQ., PLLC.**, the attorneys for the Plaintiff, and as such am familiar with the facts and circumstances herein.

I have read the foregoing **COMPLAINT**, and know the contents thereof to be true to my knowledge, except as to those matters therein stated upon information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to those matters stated upon information and belief are as follows: conversations with Plaintiff, medical records and investigation reports on file.

The reason this verification is made by me and not the Plaintiff personally is because the Plaintiff is presently outside the county where I maintain my office.

Dated: New York, New York
April 3, 2024



JON L. NORINSBERG, ESQ.